

Table of Statutes referred to in this Act.

Short Title	Session and Chapter
Reserve Forces Act, 1882	45 & 46 Vict. c. 48.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Reserve Forces and Militia Act, 1898	61 & 62 Vict. c. 9.
Reserve Forces Act, 1899	62 & 63 Vict. c. 40.
Reserve Forces Act, 1900	63 & 64 Vict. c. 42.
Reserve Forces Act, 1906	6 Edw. 7. c. 11.
Territorial and Reserve Forces Act, 1907	7 Edw. 7. c. 9.
Army (Annual) Act, 1908	8 Edw. 7. c. 2.
Territorial Army and Militia Act, 1921	11 & 12 Geo. 5. c. 37.
Reserve Forces Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 17.
Military and Air Forces (Prolongation of Service) Act, 1939	2 & 3 Geo. 6. c. 90.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Recall of Army and Air Force Pensioners Act, 1948	12 & 13 Geo. 6. c. 8.
India (Consequential Provision) Act, 1949	12, 13 & 14 Geo. 6. c. 92.
Auxiliary and Reserve Forces Act, 1949	12, 13 & 14 Geo. 6. c. 96.

CHAPTER 33

Air Force Reserve Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. The air force reserve.
2. Service as a special reservist.
3. Procedure and term of service on enlistment or re-engagement.
4. Calling out for annual training, special courses, etc.
5. Calling out on permanent service by proclamation.
6. Calling out on permanent service for home defence and overseas service.
7. Status of men on permanent service.
8. Duration of service of men called out on permanent service.
9. Directions for calling out on permanent service.
10. Calling out in aid of the civil power.
11. Government, discipline and pay.
12. Transfer outside United Kingdom.
13. Enlistment and residence outside United Kingdom.
14. Punishment for failure to attend for permanent service, annual training, etc.
15. Punishment for inducing man of air force reserve to desert or absent himself.
16. False pretence of desertion, etc.
17. Punishment of offences against orders and regulations.
18. Trial of offences.
19. Provisions as to offences triable both by court-martial and by court of summary jurisdiction.

Section

20. Record of illegal absence.
21. Application of provisions of Air Force Act as to evidence.
22. Application of enactments respecting exemptions from tolls and conveyance of regular air force.
23. Exercise of powers vested in holder of air force office.
24. Exemption from parish offices, etc.
25. Service of notices.
26. Orders and regulations.
27. Interpretation.
28. Repeals and revocation of Orders in Council.
29. Savings for power to make Orders in Council.
30. Transitional provisions and general savings.
31. Short title and commencement.

SCHEDULES :

First Schedule.—Transitional provisions as to calling out on permanent service of certain men of air force reserve.

Second Schedule.—Territories in which men may not be enlisted into air force reserve.

Third Schedule.—Repeals.

Part I—Repeal of enactments as applicable to air force reserve by Orders in Council.

Part II—Other enactments repealed.

Part III—Orders in Council revoked.

An Act to consolidate certain enactments and Orders in Council relating to the air force reserve.

[26th October 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

The air force
reserve.

1. It shall be lawful for His Majesty to maintain an air force reserve, which shall consist of such number of officers as may from time to time be provided by Parliament and of such number of men as may be so provided, being either—

- (a) men transferred (whether before or after the commencement of this Act) to the air force reserve in pursuance of the Air Force Act, or
- (b) men serving in the said reserve for a term of part-time service within the meaning of Part I of the Act of 1948, or
- (c) men enlisted or re-engaged therein in pursuance of this Act.

Service as a
special
reservist.

2.—(1) A man enlisted into the air force reserve may, whether or not he has previously served in the regular air force, be enlisted in the said reserve for service as a special reservist.

(2) A special reservist may be re-engaged, and when re-engaged shall continue subject to the terms of service applicable to special reservists.

(3) A man may be enlisted in the air force reserve for service as a special reservist with a liability to serve only within the limits of the United Kingdom, the Channel Islands and the Isle of Man.

(4) Subject to the provisions of this Act, orders or regulations made thereunder may provide for the formation of special reservists into squadrons or other air force units, and for the formation of such squadrons or other air force units into wings, groups or other formations, either alone or jointly with any other part of His Majesty's air force, and for appointing, transferring or attaching special reservists to such units or formations and for posting, attaching or otherwise dealing with special reservists within such units or formations.

(5) A special reservist who enlists into the regular air force shall upon such enlistment be deemed to be discharged from the air force reserve.

(6) Nothing in this Act shall be construed as affecting the meaning of the expression "air force reserve" in paragraph (c) of subsection (3) of section one of the Act of 1948 (which subsection provides that where a man's last service during his period of whole-time service under that Act was in the regular air force, he shall be deemed after the completion of that term to be enlisted for service in the air force reserve for a term of part-time service).

3.—(1) Every man who becomes a man of the air force reserve by being enlisted or re-engaged in pursuance of this Act shall be enlisted or re-engaged, as the case may be, in such manner, and for a term of such length and to begin on such date, as may be prescribed.

Procedure and term of service on enlistment or re-engagement.

(2) Subject to the provisions of this Act, and save as is otherwise prescribed, a man enlisting in the air force reserve shall be attested in the same manner as a recruit in the regular air force, and the following sections of the Air Force Act, that is to say—

- (a) section eighty (which relates to the mode of enlistment and attestation);
- (b) section ninety-eight (which imposes a fine for unlawful recruiting);
- (c) section ninety-nine (which makes recruits punishable for false answers);
- (d) section one hundred (which relates to the validity of attestation and enlistment or re-engagement); and
- (e) so much of section one hundred and sixty-three as relates to an attestation paper, or a copy thereof, or a declaration, being evidence,

shall apply in like manner as if they were re-enacted in this Act, with the substitution for the expression "airman" of the expression "man" or, if the context so requires, "man of the air force reserve", and for the expression "regular air force" of the expression "air force reserve".

(3) A man enlisting in the air force reserve may be attested by a regular officer, and the sections of the Air Force Act specified in the last foregoing subsection together also with section thirty-three of that Act (which relates to false answers on enlistment) shall, in their application to the air force reserve, be construed as if the expressions "justice" and "justice of the peace" included such an officer.

Calling out
for annual
training,
special courses,
etc.

4.—(1) Subject to the provisions of this section, all or any of the men of the air force reserve may be called out for annual training at such time or times, and at such place or places in the United Kingdom and for such period or periods as may be prescribed:

Provided that the period or periods so prescribed shall not, except as respects special reservists, exceed in any one year—

- (i) twenty-four days in the case of a man who is serving as a qualified pilot or as a qualified observer;
- (ii) six months in the case of a man who is undergoing instruction with a view to his qualifying for service as a pilot or observer;
- (iii) twelve days or twenty drills or instructional parades in the case of any other man.

In this subsection "observer" includes navigator, and "qualified" means qualified in accordance with orders or regulations made under this Act.

(2) Subject to the provisions of this section, a special reservist may, in addition to being called out for annual training, be called out for a special course or special courses of training at such place or places in the United Kingdom or the Isle of Man, at such time or times, and for such period or periods, not exceeding in the whole six months, as may be prescribed, in like manner and subject to the like conditions as he may be called out for annual training.

(3) Where one of the conditions on which a special reservist was enlisted or re-engaged is that he shall not be called out for training, whether special or annual, for a longer period than the period specified in his attestation paper, he shall not be liable under the foregoing provisions of this section to be called out for any longer period.

(4) The foregoing provisions of this section shall not apply to men serving in the air force reserve for a term of part-time

service within the meaning of Part I of the Act of 1948, but such men shall perform such training as they may be required to undergo under the said Part I.

(5) A man of the air force reserve may, during any period of training for which he may be called out or which he may be required to undergo as aforesaid, be attached to and trained with any body of the regular or auxiliary air force.

5.—(1) In case of imminent national danger or of great emergency it shall be lawful for His Majesty in Council by proclamation to order that the air force reserve shall be called out on permanent service.
Calling out on permanent service by proclamation.

(2) Before a proclamation is issued under the last foregoing subsection the occasion thereof shall be communicated to Parliament, if Parliament be then sitting; and if Parliament be not then sitting—

- (a) the occasion of the proclamation shall be declared in Council and notified by the proclamation, and
- (b) if Parliament be then separated by such an adjournment or prorogation as will not expire within ten days, a proclamation shall be issued for the meeting of Parliament within ten days, and Parliament shall accordingly meet and sit on the day appointed by the proclamation and shall continue to sit and act as if it had stood adjourned or prorogued to that day.

(3) Where a proclamation under subsection (1) of this section has been issued, it shall be lawful for His Majesty at any time thereafter by proclamation to order that all special reservists shall cease to be called out on permanent service.

6.—(1) Without prejudice to the provisions of the last foregoing section but subject to the provisions of this section,—
Calling out on permanent service for home defence and overseas service.

- (a) any man of the air force reserve (whether he entered the reserve on transfer or re-engagement or on being enlisted or on being deemed to be enlisted) shall during the whole of his service therein be liable to be called out on permanent service for home defence service;
- (b) any man who has been transferred to the air force reserve in pursuance of the Air Force Act shall, if on his transfer he was designated by the competent air force authority as a man to whom this paragraph applies, be liable to be called out on permanent service for overseas service at any time during the first year of his service therein;
- (c) without prejudice to the provisions of the last foregoing paragraph, any man of the air force reserve (whether he entered the reserve on transfer or re-engagement or on being enlisted or on being deemed

to be enlisted) shall, if he has entered into an agreement in writing to be so liable at the time in question, be liable at any time during his service in the said reserve to be called out on permanent service for overseas service.

Any exercise of the power of calling out men under paragraphs (b) and (c) of this subsection shall be reported to Parliament as soon as may be.

(2) A man called out on permanent service under any paragraph of the last foregoing subsection may, while on permanent service, be employed in any service for which, if not previously called out, he could have been called out under that subsection.

(3) The following limits of number shall have effect as respects the calling out of men under this section, that is to say:—

(a) the number of men liable to be called out by virtue of agreements made for the purposes of paragraph (c) of subsection (1) of this section, being either special reservists or other men who—

(i) are deemed to be enlisted in the air force reserve for a term of part-time service within the meaning of Part I of the Act of 1948, or

(ii) have been enlisted in the air force reserve (whether in pursuance of section two of the said Act of 1948 or otherwise) for service in lieu of such part-time service as aforesaid,

shall not at any time exceed fifteen thousand ;

(b) the aggregate number of men for the time being designated under paragraph (b) of subsection (1) of this section and men (other than those falling within the last foregoing paragraph) for the time being liable to be called out by virtue of agreements made for the purposes of paragraph (c) of the said subsection (1) shall not exceed thirty thousand.

(4) The number of men for the time being called out under any of the provisions of this section shall not be reckoned in the numbers for the time being authorised by Parliament for the regular air force.

(5) An agreement made for the purposes of paragraph (c) of subsection (1) of this section may be revoked by three months' notice in writing.

(6) In this section—

(a) the expression "home defence service" means service at any place in the United Kingdom in defence of the United Kingdom against actual or apprehended attack; and

- (b) the expression "overseas service" means service when the men in question are required for service outside the United Kingdom when warlike operations are in preparation or in progress,

and references in paragraphs (a) and (b) of this subsection to the United Kingdom shall be construed as if that expression included the Channel Islands and the Isle of Man.

(7) Nothing in the foregoing provisions of this section—

- (a) shall apply to a man who was a man of the air force reserve on the twenty-sixth day of May, nineteen hundred and fifty, not being a man who has re-engaged or enlisted therein after that date ;
- (b) in the case of a man who, being an airman of the regular air force on the date aforesaid, has thereafter been transferred to the air force reserve in pursuance of the Air Force Act, shall apply to him during his service therein as a man so transferred ;

but the provisions of the First Schedule to this Act shall have effect as respects such men as are referred to in that Schedule.

7. A man of the air force reserve while called out on permanent service shall form part of the regular air force.

Status of men
on permanent
service.

8.—(1) Subject to the provisions of this section and of the First Schedule to this Act, a man of the air force reserve when called out on permanent service shall be liable to serve until His Majesty no longer requires his services.

Duration of
service of men
called out on
permanent
service.

(2) A man shall not without his consent in writing be liable to serve under paragraph (b) or (c) of subsection (1) of section six of this Act for a period which, together with any previous period for which he was called out under either of those paragraphs, exceeds twelve months :

Provided that in the case of a man who, having been called out under the said subsection (1), is on permanent service when the air force reserve is called out under section five of this Act, any period thereafter during which he remains on permanent service shall not be treated for the purposes of this subsection as a period of service under the said paragraph (b) or (c).

(3) No man called out on permanent service shall be required to serve for a period exceeding in the whole the remainder unexpired of his term of service in the air force reserve and any further period not exceeding twelve months during which, as

an airman of the regular air force, he can under section eighty-seven of the Air Force Act be detained in service after the time at which he would otherwise be entitled to be discharged :

Provided that a Secretary of State may, by regulations made under this Act, authorise any special reservist having the qualifications prescribed by those regulations to agree in writing that, if the time at which he would otherwise be entitled to be discharged from the air force reserve occurs when he is called out on permanent service, he will continue to serve therein until the expiration of such period, whether definite or indefinite, as may be specified in the agreement ; and if any man who enters into such an agreement is called out on permanent service, he shall be liable to be detained in service for the period specified in his agreement in the same manner in all respects as if his term of service were still unexpired.

Directions for
calling out on
permanent
service.

9.—(1) A proclamation under subsection (1) of section five of this Act may order a Secretary of State from time to time to give, and when given to revoke or vary, such directions as may seem necessary or proper for calling out the air force reserve or all or any of the men belonging thereto.

(2) It shall be lawful for a Secretary of State, at any time when it appears to him that the occasion so requires, to give, and when given to revoke or vary, such directions as he may think fit for calling out on permanent service in accordance with the provisions of subsection (1) of section six of this Act any man who by virtue of those provisions is liable to be so called out.

(3) Every man for the time being called out by any such directions as aforesaid shall attend at the time and place appointed by those directions, and at and after that time shall be deemed to be called out on permanent service.

(4) Where a Secretary of State has given any directions under the last but one foregoing subsection, he may at any time thereafter give such directions as he may think fit for terminating the service under subsection (1) of section six of this Act of men called out by the directions under the last but one foregoing subsection, but without prejudice to the power of the Secretary of State by further directions given under the last but one foregoing subsection to call out for further service any man whose service has been terminated by directions given under this subsection.

(5) Upon the making of a proclamation under subsection (3) of section five of this Act a Secretary of State shall give such directions as may seem necessary or proper for carrying the said proclamation into effect.

10.—(1) It shall be lawful for a Secretary of State, at any time when occasion appears to require, to call out the whole or so many as he thinks necessary of the men of the air force reserve, to aid the civil power in the preservation of the public peace. Calling out in aid of the civil power.

(2) It shall be lawful for any officer commanding the regular air force in any town or district, on the requisition in writing of any justice of the peace, to call out for the purpose aforesaid the men of the air force reserve who are resident in the town or district, or so many of them as he may think necessary.

(3) Any power by this section vested in a Secretary of State may, as regards men resident in Northern Ireland, be exercised also by the Governor of Northern Ireland.

11. Subject to the provisions of this Act, orders and regulations made thereunder may make provision with respect to the government, discipline and pay of the air force reserve, and with respect to other matters and things relating to the air force reserve. Government, discipline and pay.

12.—(1) Where an airman of the regular air force is serving outside the United Kingdom at the time when he is entitled to be transferred to the air force reserve, he may, at his own request, be so transferred without being required to return to the United Kingdom, subject however to such conditions as to residence, as to liability to be called out for annual training or on permanent service or in aid of the civil power, or as to any other matters, as may be prescribed by regulations made under this Act. Transfer outside United Kingdom.

(2) The provisions of this Act shall apply to a man transferred to the air force reserve in pursuance of this section subject to such adaptations as may be so prescribed as aforesaid.

13.—(1) Men may be enlisted into the air force reserve in any of the territories to which this section applies, not being territories specified in the Second Schedule to this Act, subject however to such conditions as may be prescribed by regulations made under this Act. Enlistment and residence outside United Kingdom.

(2) A man of the air force reserve may, if so authorised by or under the directions of the Secretary of State who is President of the Air Council, reside in any of the territories to which this section applies, subject however to such conditions as may be so prescribed as aforesaid.

(3) This section applies to the following territories, that is to say, to any part of His Majesty's dominions outside the United Kingdom and to any British protectorate.

(4) The provisions of this Act shall apply—

- (a) to any enlistment under subsection (1) of this section, and
- (b) to a man of the air force reserve during such time as he resides outside the United Kingdom in pursuance of an authorisation of the said Secretary of State under subsection (2) of this section,

subject in either case to such adaptations as may be prescribed by regulations made under this Act, being adaptations necessary for the purpose of adapting those provisions to the circumstances of the several territories to which this section applies.

(5) His Majesty may by Order in Council make provision for including among the territories specified in the Second Schedule to this Act any part of His dominions outside the United Kingdom, the Channel Islands and the Isle of Man, being a part of His dominions to which responsible government has been granted since the twentieth day of July, nineteen hundred and six and not being a Dominion other than Ceylon.

Punishment
for failure to
attend for
permanent
service, annual
training, etc.

14.—(1) Any man of the air force reserve who, being called out on permanent service or in aid of the civil power, fails, without leave lawfully granted, or such sickness or other reasonable excuse as may be allowed in the prescribed manner, to appear at any time and place at which he is required on being so called out to attend, shall be guilty, according to the circumstances, of desertion or absence without leave, and on conviction by court-martial shall be punishable as for an offence under section twelve or, as the case may be, section fifteen of the Air Force Act.

(2) Any man of the air force reserve who, being called out for annual training, fails without such leave or excuse as aforesaid to appear at any time and place at which he is required on being so called out to attend, shall be guilty of absence without leave, and on conviction by court-martial shall be punishable as for an offence under the said section fifteen.

(3) Any man of the air force reserve who commits an offence under section twelve or section fifteen of the Air Force Act may be tried, convicted and punished under that Act whether or not otherwise subject thereto.

(4) Without prejudice to the foregoing provisions of this section, but subject as hereinafter provided, any man who—

- (a) commits an offence contrary to subsection (1) or subsection (2) of this section, or section twelve or section fifteen of the Air Force Act, or

- (b) being a man serving in the air force reserve for a term of part-time service within the meaning of Part I of the Act of 1948, fails without reasonable excuse to attend at any time and place appointed for training under the said Part I, or to perform such training for the period, and in accordance with the other conditions, laid down in respect thereof under the said Part I,

shall be liable on summary conviction to a fine of not less than forty shillings and not more than twenty-five pounds, and in default of payment of the fine to imprisonment for any term not less than seven days and not more than the maximum term allowed by law for non-payment of the fine, and may in any case be taken into air force custody.

(5) Section one hundred and fifty-four of the Air Force Act shall apply to a deserter or absentee without leave as it applies to a deserter or absentee without leave within the meaning of that Act, so however that the delivery of a man of the air force reserve into air force custody under that section, or his committal thereunder for the purpose of being so delivered, shall not prevent his subsequently being tried as provided by the last foregoing subsection.

(6) Nothing in paragraph (b) of subsection (4) of this section shall apply in the case of a man who fails to comply with a training notice served upon him under section five of the Act of 1948, or affect the provisions of Part I of that Act relating to the punishment of a man for that offence.

15.—(1) Any person who, in the United Kingdom or elsewhere, by any means whatsoever—

Punishment
for inducing
man of air
force reserve
to desert or
absent himself.

(a) procures or persuades any man of the air force reserve to commit an offence of desertion, or attempts to procure or persuade any such man to commit such an offence, or

(b) knowing that any such man is about to commit such an offence aids or assists him in so doing, or

(c) knowing any such man to be a deserter conceals the man, or aids or assists him in concealing himself, or employs or continues to employ him, or aids or assists in his rescue,

shall be liable on summary conviction to a fine not exceeding thirty pounds, or to imprisonment for a term not exceeding six months.

(2) The last foregoing subsection shall apply to absence without leave and absentees without leave as it applies to desertion and deserters, but with the substitution for the reference to such a fine or imprisonment as is therein specified of a reference to a fine not exceeding twenty pounds.

(3) Any person who, knowing any man of the air force reserve to be a deserter within the meaning of the Air Force Act, employs or continues to employ the man, shall be deemed to aid him in concealing himself within the meaning of paragraph (3) of section one hundred and fifty-three of the Air Force Act (which provides, among other things, for the punishment of persons concealing deserters from the regular air force).

False pretence
of desertion,
etc.

16. Any person who falsely represents himself to be a deserter or absentee without leave from the air force reserve shall be liable, on summary conviction, to imprisonment for a term not exceeding three months.

Punishment
of offences
against orders
and
regulations.

17.—(1) Any man of the air force reserve who—

- (a) fails without reasonable excuse on two consecutive occasions to comply with the orders or regulations made under this Act respecting the payment of the air force reserve ; or
- (b) when required by or in pursuance of the orders or regulations made under this Act to attend at any place, fails without reasonable excuse to attend in accordance with the requirement ; or
- (c) uses threatening or insulting language or behaves in an insubordinate manner to any officer or warrant or non-commissioned officer who in pursuance of the orders or regulations made under this Act is acting in the execution of his office, and who would be the superior officer of the offender if he were subject to the Air Force Act ; or
- (d) by any fraudulent means obtains or is an accessory to the obtaining of any pay or other sum contrary to the orders or regulations made under this Act ; or
- (e) fails without reasonable excuse to comply with the orders or regulations in force under this Act,

shall be guilty of an offence under this section.

(2) Any man of the air force reserve who commits an offence under this section, whether otherwise subject to the Air Force Act or not, shall be liable—

- (a) on conviction by court-martial to suffer imprisonment, or such less punishment as is mentioned in the Air Force Act ; or
- (b) on summary conviction to a fine of not less than forty shillings and not more than twenty-five pounds, and in default of payment of the fine to imprisonment for any term not less than seven days and not more than the maximum term allowed by law for non-payment of the fine ;

and may in any case be taken into air force custody.

(3) A certificate purporting to be signed by an officer who is therein mentioned as an officer appointed to pay a man of the air force reserve, and stating that the man has failed on two consecutive occasions to comply with the orders or regulations made under this Act respecting the payment of the air force reserve, shall, without proof of the signature or appointment of the officer, be evidence of the failure.

Where a person other than an officer is appointed to pay men of the air force reserve, this subsection shall apply to certificates purporting to be signed by him as it applies to certificates purporting to be signed by an officer appointed in the like behalf.

(4) Where a man of the air force reserve is required by or in pursuance of the orders or regulations made under this Act to attend at any place, a certificate purporting to be signed by an officer or person who is therein mentioned as being appointed to be present at that place for the purpose of inspecting men of the air force reserve, or for any other purpose connected with the air force reserve, and stating that the man failed to attend in accordance with the said requirement, shall, without proof of the signature or appointment of the officer or person, be evidence of the failure.

18.—(1) Any offence which under this Act is punishable on conviction by court-martial shall, for all purposes of and incidental to the arrest, trial and punishment of the offender, including the summary disposal of the case by his commanding officer, be deemed to be an offence under the Air Force Act, so however that references in that Act to forfeitures and stoppages shall be construed in relation to any such offence as references to such forfeitures and stoppages as may be prescribed. Trial of offences.

(2) Any offence which under this Act is punishable on summary conviction may be prosecuted, and any fine recoverable on such conviction may be recovered, in manner provided by sections one hundred and sixty-six to one hundred and sixty-eight of the Air Force Act in like manner as if those sections were herein re-enacted and in terms made applicable to proceedings under this Act.

(3) Save as provided by the said section one hundred and sixty-six, the minimum fixed by this Act for the amount of any fine or for the term of any imprisonment shall be duly observed by courts of summary jurisdiction and shall, notwithstanding anything contained in any other Act, not be reduced by way of mitigation or otherwise.

(4) Where a man of the air force reserve commits in the presence of any officer an offence under the last foregoing section, or an offence under subsection (2) or subsection (3) of

section one hundred and forty-two of the Air Force Act (which relates to the offence of personation), that officer may, if he thinks fit, order the offender, in lieu of being taken into air force custody, to be taken into custody by any constable and to be brought before a court of summary jurisdiction for the purpose of being dealt with by that court.

(5) For all purposes in relation to the arrest, trial and punishment of a person for any offence punishable under this Act, including the summary disposal of the case by the commanding officer, this Act shall extend to the Channel Islands and the Isle of Man.

Provisions as to offences triable both by court-martial and by court of summary jurisdiction.

19. The following provisions shall have effect as respects the trial and punishment of men charged with offences which in pursuance of this Act are cognizable both by a court-martial and by a court of summary jurisdiction:—

- (a) a man so charged shall not be liable to be tried in both of the following ways, that is to say, on the one hand by court-martial or by the case being disposed of summarily by his commanding officer and on the other hand by a court of summary jurisdiction, but shall be proceeded against in one or other of those ways according as may be prescribed;
- (b) proceedings against a man so charged, before either a court-martial, or his commanding officer, or a court of summary jurisdiction, may be instituted whether or not the term of the man's service in the air force reserve has expired;
- (c) any such proceedings may, notwithstanding anything in any other Act, be instituted within two months after whichever of the following times is the later, that is to say—
 - (i) the time at which the offence becomes known to an officer who by orders or regulations made under this Act has power to direct the offender to be tried by court-martial or by a court of summary jurisdiction; or
 - (ii) the time at which the offender is apprehended, whether by a civil or an air force authority;
- (d) nothing in any other Act which provides for a period of limitation respecting the time for hearing and determining offences shall apply in the case of any proceedings so instituted as aforesaid.

Record of illegal absence.

20.—(1) Where a man of the air force reserve is subject to the Air Force Act, and is unlawfully absent from his duty, a court of inquiry under section seventy-two of the Air Force Act may be assembled after the expiration of twenty-one days from

the date of the man's absence, notwithstanding that the period during which the man was subject to the Air Force Act is less than twenty-one days, or has expired before the expiration of twenty-one days; and the record mentioned in that section may be entered in manner thereby provided, or in such service books and by such officer as may be prescribed.

(2) Where a man of the air force reserve fails to appear at the time and place at which he is required upon being called out for annual training or on permanent service to attend, and his absence continues for not less than fourteen days, an entry of the man's absence shall be made by the prescribed officer in the prescribed manner and in the prescribed service books and the entry shall be conclusive evidence of the fact of the man's absence.

21.—(1) Section one hundred and sixty-three of the Air Force Act (which relates to evidence generally) shall apply to all proceedings under this Act. Application of provisions of Air Force Act as to evidence.

(2) Section one hundred and sixty-four of the Air Force Act (which relates to evidence of the civil conviction or acquittal of a person subject to that Act) shall apply in the case of a man of the air force reserve who is tried by a civil court, whether or not he is at the time of the trial subject to the said Act.

22.—(1) For the purposes of section one hundred and forty-three of the Air Force Act, and all other enactments relating to the duties, tolls and ferries which are mentioned in that section, officers and men of the air force reserve, when going to or returning from any place at which they are required to attend, and for non-attendance at which they are liable to be punished, shall be deemed to be officers and airmen of the regular air force on duty. Application of enactments respecting exemptions from tolls and conveyance of regular air force.

(2) All enactments for the time being in force concerning the conveyance by railway or otherwise of any part of the regular air force, and their baggage, stores, arms, ammunition and other necessities and things, shall apply as if the air force reserve were such a part of the regular air force.

23.—(1) Any power or jurisdiction given to, and any act or thing to be done by, to or before, any person holding any air force office may, in relation to the air force reserve, be exercised by or done by, to, or before any other person for the time being authorised in that behalf according to the custom of the service. Exercise of powers vested in holder of air force office.

(2) Where by this Act, or by any order or regulation made under this Act, any order is authorised to be made by any air force authority, the order may be signified by an order,

instruction or letter under the hand of any officer authorised to issue orders on behalf of the said air force authority, and an order, instruction or letter purporting to be signed by any officer appearing therein to be so authorised shall be evidence of his being so authorised.

Exemption
from parish
offices, etc.

24. A man of the air force reserve shall not be liable to serve the office of constable, or any other parochial, township or borough office.

Service of
notices.

25. The following provisions shall have effect with respect to notices required in pursuance of orders or regulations made under this Act to be given to men of the air force reserve:—

- (a) a notice may be served on any such man either by being sent by post to his last registered place of abode or by being served in the prescribed manner;
- (b) evidence of the delivery at the last registered place of abode of a man of the air force reserve of a notice, or of a letter addressed to the man containing a notice, shall be evidence that the notice was brought to the man's knowledge;
- (c) the publication of a notice in the prescribed manner in the parish in which the last registered place of abode of a man of the air force reserve is situate shall be sufficient notice to him, notwithstanding that a copy of the notice is not served on him;
- (d) every constable and—
 - (i) as respects things to be done in an urban parish, the clerk to the rating authority,
 - (ii) as respects things to be done in a rural parish having a parish council, the chairman of the parish council, and
 - (iii) as respects things to be done in any other rural parish, the chairman of the parish meeting,
 shall, when so required by or on behalf of a Secretary of State, conform with the orders and regulations made under this Act as respects the publication and service of notices, and in default shall be liable on summary conviction to a fine not exceeding twenty pounds.

Orders and
regulations.

26.—(1) Where by this Act power is conferred to make provision with respect to any matter by orders or regulations made under this Act,—

- (a) it shall be lawful for His Majesty, by order signified under the hand of a Secretary of State, to make orders with respect to the matter in question, and any such order may be varied or revoked by a subsequent order made in the like manner;

(b) subject to the provisions of any such order, a Secretary of State may make general or special regulations with respect to the said matter.

(2) Where by this Act power is conferred to make provision with respect to any matter by regulations made under this Act, a Secretary of State may make general or special regulations with respect to the said matter.

(3) All orders and general regulations made in accordance with this section shall be laid before both Houses of Parliament as soon as practicable after they are made, if Parliament be then sitting, or, if Parliament be not then sitting, as soon as practicable after the beginning of the then next session of Parliament.

(4) For the purposes of the Statutory Instruments Act, 1946, this Act shall be deemed to be an Act passed before the commencement of that Act, and any reference in regulations made under subsection (1) of section eight of that Act to any provision of the Reserve Forces Act, 1882, as applied to the air force reserve by the Air Force Reserve Order, 1924, shall, without prejudice to any power to vary or revoke the said regulations, be construed as a reference to the corresponding provision of this Act.

27.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:— Interpretation.

“absence without leave” and “desertion” mean respectively absence without leave contrary to subsection (1) or subsection (2) of section fourteen of this Act and desertion contrary to the said subsection (1), and “absentee without leave” and “deserter” shall be construed accordingly;

“the Act of 1948” means the National Service Act, 1948;

“competent air force authority” has the same meaning as in Part II of the Air Force Act;

“man” includes a warrant officer and a non-commissioned officer;

“prescribed” means prescribed by orders or regulations made under this Act;

“special reservist” means a man of the air force reserve who is serving therein as a special reservist pursuant to section two of this Act; and

other expressions have the same meanings as they have in the Air Force Act.

(2) For the purposes of subsection (3) of section two and subsection (6) of section six of this Act, and of paragraph 4 of the First Schedule thereto, service on any flight of which the point

of departure is within the boundaries of the United Kingdom, the Channel Islands or the Isle of Man or the territorial waters of the United Kingdom or of any of those islands and of which the point of intended return is within the said boundaries shall be deemed to be service within the limits of the United Kingdom, the Channel Islands and the Isle of Man notwithstanding that the flight may in its course extend beyond those boundaries.

(3) This Act shall apply in relation to women as it applies in relation to men.

(4) In section one hundred and ninety of the Air Force Act, after paragraph (9) there shall be inserted the following paragraph:—

“(10) the expression ‘air force reserve force’ means the air force reserve”.

Repeals and
revocation of
Orders in
Council.

28.—(1) The enactments specified in the second column of the First Part of the Third Schedule to this Act (being enactments applied to the air force reserve by the Orders in Council specified in the third column of that Part of that Schedule) are hereby repealed so far as they are applicable to the air force reserve.

(2) The enactments specified in the second column of the Second Part of the said Schedule are hereby repealed to the extent specified in the third column of that Part of that Schedule.

(3) The Orders in Council specified in the second column of the Third Part of the said Schedule shall, to the extent specified in the third column of that Part of that Schedule, cease to have effect.

Savings for
power to make
Orders in
Council.

29.—(1) The foregoing provisions of this Act shall not affect the power of His Majesty, under the enactments to which this section applies, by Order in Council to apply with adaptations and modifications to the air force reserve or the officers and men thereof enactments relating to the army reserve or the officers and men thereof, or to make by any such Order in Council such supplemental and consequential provisions as are authorised by the enactments to which this section applies.

(2) The said power shall be exercisable as well in relation to any Act of the present Session to consolidate certain enactments relating to the army reserve as but for this Act it would have been exercisable in relation to the enactments repealed by that Act.

(3) Any Order in Council made under the said power may vary or revoke any provision of this Act, being a provision reproduced from any of the Orders revoked by subsection (3) of the last foregoing section, to the like extent as if that provision were contained in an Order in Council made under the said power.

(4) This section applies to the following enactments, that is to say:—

subsection (2) of section six of the Air Force (Constitution) Act, 1917, so far as it relates to the air force reserve ;
section three of the Auxiliary Air Force and Air Force Reserve Act, 1924, and section four of that Act so far as it relates to the air force reserve ;
the Air Force Reserve (Pilots and Observers) Act, 1934 ;
and
sections fourteen and fifteen of the Auxiliary and Reserve Forces Act, 1949, and subsection (1) of section sixteen of that Act so far as it relates to the air force reserve.

30.—(1) Nothing in paragraph (i) or paragraph (ii) of the proviso to subsection (1) of section four of this Act shall apply to or affect any man who was a man of the air force reserve on the twenty-eighth day of March, nineteen hundred and thirty-four, or who was an airman of the regular air force on that date and has subsequently been transferred to the air force reserve, except in so far as he has agreed in writing to accept such obligations as are imposed by the paragraph in question in lieu of his obligations under paragraph (iii) of the said proviso. Transitional provisions and general savings.

(2) Subsection (1) of section two of the Recall of Army and Air Force Pensioners Act, 1948 (which provides that air force pensioners may be recalled under that Act at any time when men of the air force reserve are or are deemed to be called out on permanent service under the Reserve Forces Act, 1882) shall have effect in relation to the air force reserve as if the words “or are deemed to be” and the words “under the Reserve Forces Act, 1882” were omitted and as if at the end of the subsection there were inserted the following paragraph:—

“In this subsection the expression ‘called out on permanent service’ means called out on permanent service under section five of the Air Force Reserve Act, 1950, or paragraph (a) of subsection (1) of section six thereof or paragraph 4 of the First Schedule thereto.”

(3) Without prejudice to the provisions of the last foregoing section, for the purposes of the India (Consequential Provision) Act, 1949, an enactment in this Act reproducing any provision of the law hereby repealed shall be deemed to have been passed at the date of the making of that provision.

(4) Nothing in this Act shall affect any order, regulation, transfer, requisition, posting, appointment, designation, agreement, record, entry, attachment or certificate made, or direction or notice given, enlistment, re-engagement or attestation effected, proceedings taken, or any other thing done in the exercise of any power or jurisdiction under or by virtue of any enactment repealed by this Act, but any such order, regulation,

transfer, requisition, posting, appointment, designation, agreement, record, entry, attachment, certificate, direction, notice, enlistment, re-engagement, attestation, proceedings or thing shall, if in force at the commencement of this Act, and so far as it or they could have been made, given, effected, taken or done under or by virtue of this Act have effect as if made, given, effected, taken or done under or by virtue of this Act.

(5) Nothing in the foregoing provisions of this section shall be taken as prejudicing the operation of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

(6) The provisions of this Act as to the term of service of men of the air force reserve shall have effect subject to the provisions of the Military and Air Forces (Prolongation of Service) Act, 1939, so long as that Act is in operation.

Short title and
commence-
ment.

31.—(1) This Act may be cited as the Air Force Reserve Act, 1950.

(2) This Act shall come into operation on the first day of January, nineteen hundred and fifty-one.

Sections 6, 8, 27.

SCHEDULES

FIRST SCHEDULE

TRANSITIONAL PROVISIONS AS TO CALLING OUT ON PERMANENT SERVICE OF CERTAIN MEN OF AIR FORCE RESERVE

1.—(1) Subject to the provisions of this Schedule a man of the air force reserve who is serving therein as a man transferred thereto in pursuance of the Air Force Act and who—

- (a) was on the twenty-sixth day of May, nineteen hundred and fifty, so serving, or
- (b) having been an airman of the regular air force on the date aforesaid, has been so transferred to the air force reserve after that date,

being in either case a man whose character on transfer to the air force reserve was good, shall, if he so agrees in writing, be liable during the first two years of such service to be called out on permanent service under this paragraph:

Provided that—

- (i) the number of men so liable shall not at any one time exceed six thousand, and
- (ii) a man called out under this paragraph shall not be liable to serve more than twelve months.

(2) Any agreement under this paragraph may be revoked by three months' notice in writing.

(3) The power of calling men out under this paragraph shall not be exercised except when the men so called out are required for service outside the United Kingdom when warlike operations are in preparation or in progress.

1ST SCH.
—cont.

2.—(1) Subject to the provisions of this Schedule, a special reservist who was on the twenty-sixth day of May, nineteen hundred and fifty serving as such in the air force reserve shall, if he so agrees in writing, be liable during the whole of his service in the air force reserve, or during such part of that service as he so agrees, to be called out on permanent service under this paragraph:

Provided that the number of men so liable shall not at any one time exceed four thousand.

(2) Any agreement under this paragraph may provide for the revocation thereof by such notice in writing as may be therein stated.

(3) The power of calling men out under this paragraph shall not be exercised except when they are required for service outside the United Kingdom and the Isle of Man when warlike operations are in preparation or in progress.

3. The following provisions shall have effect as respects the power of calling men out on permanent service under either of the last two foregoing paragraphs:—

(a) any exercise of the said power shall be reported to Parliament as soon as may be;

(b) the number of men for the time being called out under either of the said paragraphs shall not be reckoned in the numbers for the time being authorised by Parliament for the regular air force.

4.—(1) It shall be lawful for His Majesty by Order in Council declaring that a state of emergency exists, to order a Secretary of State to give, and when given to revoke or vary, such directions as may seem necessary or proper for calling out to serve in the United Kingdom in defence of the United Kingdom against actual or apprehended attack all or any of the men of the air force reserve liable to be called out and to serve under this paragraph.

(2) The men liable to be called out and to serve under this paragraph are men who were on the twenty-sixth day of May, nineteen hundred and fifty men of the air force reserve, having entered that reserve by enlistment after the twenty-fifth day of July, nineteen hundred and twenty-four, or by transfer in pursuance of the Air Force Act where the original term of enlistment began after the said twenty-fifth day of July and not having re-engaged therein after the said twenty-sixth day of May.

(3) Every man for the time being called out by directions under this paragraph shall attend at the place and time fixed by those directions and shall, when so called out, be deemed to have been called out on permanent service.

(4) It shall be lawful for His Majesty by Order in Council to declare that a state of emergency no longer exists, and thereupon the Secretary of State shall give such directions as may seem necessary or proper for terminating the service under this paragraph of the men of the air force reserve called out thereunder.

(5) Until any such Order in Council as is mentioned in the last preceding sub-paragraph has been made, the Secretary of State may from time to time, as he may think expedient for the public service,

1st SCH.
—cont.

give such directions as may seem necessary or proper for dispensing with the service under this paragraph of any men of the air force reserve and for calling out any men of that reserve to serve under this paragraph whether or not their service under this paragraph has been previously dispensed with.

(6) References in sub-paragraph (1) of this paragraph to the United Kingdom shall be construed as if that expression included the Channel Islands and the Isle of Man.

Section 13.

SECOND SCHEDULE

TERRITORIES IN WHICH MEN MAY NOT BE ENLISTED INTO AIR FORCE RESERVE

Canada.

Australia.

New Zealand.

Union of South Africa.

Section 28.

THIRD SCHEDULE

REPEALS

PART I

Repeal of enactments as applicable to air force reserve by Orders in Council.

Session and Chapter	Short title	Order in Council applying enactment wholly or in part to the air force reserve
45 & 46 Vict. c. 48.	The Reserve Forces Act, 1882.	The Air Force Reserve Order, 1924; the Air Force Reserve (Pilots and Observers) Order, 1934.
61 & 62 Vict. c. 9.	The Reserve Forces and Militia Act, 1898.	The Air Force Reserve (Application of Enactments) (No. 1) Order, 1918.
62 & 63 Vict. c. 40.	The Reserve Forces Act, 1899.	The Air Force Reserve (Application of Enactments) (No. 1) Order, 1918.
6 Edw. 7. c. 11.	The Reserve Forces Act, 1906.	The Air Force Reserve (Application of Enactments) (No. 1) Order, 1918.
7 Edw. 7. c. 9.	The Territorial and Reserve Forces Act, 1907, except section thirty-six thereof.	The Air Force Reserve Order, 1924.
12, 13 & 14 Geo. 6. c. 96.	The Auxiliary and Reserve Forces Act, 1949.	The Air Force Reserve Order, 1950.

PART II

*Other enactments repealed*3RD SCH.
—cont.

Session and Chapter	Short title	Extent of repeal
7 & 8 Geo. 5. c. 51.	The Air Force (Constitution) Act, 1917.	In section six, subsection (1), so far as it relates to the raising and maintenance of an air force reserve.
	The Air Force Act ...	In section eighty-eight, subsection (4).
14 & 15 Geo. 5. c. 15.	The Auxiliary Air Force and Air Force Reserve Act, 1924.	Section five, so far as it relates to the air force reserve.

PART III

Orders in Council revoked

Reference	Citation	Extent of revocation
S.R. & O. 1918 No. 1064.	The Air Force Reserve (Application of Enactments) (No. 1) Order, 1918.	The whole Order, except so far as it applies the Reserve Forces Act, 1890 to the air force reserve.
S.R. & O. 1924 No. 1213.	The Air Force Reserve Order, 1924.	The whole Order, except so far as it applies section thirty-six of the Territorial and Reserve Forces Act, 1907 to the air force reserve.
S.R. & O. 1934 No. 692.	The Air Force Reserve (Pilots and Observers) Order, 1934.	The whole Order.
S.I. 1949 No. 1844.	The National Service (Adaptation of Enactments) (Military and Air Forces) Order, 1949.	In Part II of the Schedule to the Order, paragraphs 6 to 10.
S.I. 1950 No. 835.	The Air Force Reserve Order, 1950.	The whole Order.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Reserve Forces Act, 1882	45 & 46 Vict. c. 48.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Reserve Forces and Militia Act, 1898	61 & 62 Vict. c. 9.
Reserve Forces Act, 1899	62 & 63 Vict. c. 40.
Reserve Forces Act, 1906	6 Edw. 7. c. 11.
Territorial & Reserve Forces Act, 1907	7 Edw. 7. c. 9.
Air Force (Constitution) Act, 1917	7 & 8 Geo. 5. c. 51.
Auxiliary Air Force and Air Force Reserve Act, 1924	14 & 15 Geo. 5. c. 15.
Air Force Reserve (Pilots and Observers) Act, 1934	24 & 25 Geo. 5. c. 5.
Military and Air Forces (Prolongation of Service) Act, 1939	2 & 3 Geo. 6. c. 90.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Recall of Army and Air Force Pensioners Act, 1948	12 & 13 Geo. 6. c. 8.
India (Consequential Provision) Act, 1949	12, 13 & 14 Geo. 6. c. 92.
Auxiliary and Reserve Forces Act, 1949	12, 13 & 14 Geo. 6. c. 96.

CHAPTER 34

Housing (Scotland) Act, 1950

ARRANGEMENT OF SECTIONS

PART I

LOCAL AUTHORITIES FOR PURPOSES OF THIS ACT

Section

1. Local authorities for purposes of this Act.
2. Power of local authority to appoint committees.

PART II

PROVISIONS FOR SECURING THE REPAIR, MAINTENANCE AND SANITARY CONDITION OF HOUSES

Obligations as to repair of houses

3. Conditions to be implied on letting houses for human habitation.
4. Application of s. 3 to houses occupied by workmen engaged in agriculture.
5. Duty of county councils to require provision of waterclosets or earthclosets.

Duty of local authority in regard to inspection of houses

6. Duty of local authority to inspect their district and to keep records.
Repair, demolition and closing of insanitary houses
7. Power of local authority to order execution of works on insanitary house.
8. Enforcement of notice requiring execution of works.
9. Power of local authority to order demolition or closing of insanitary house.